

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: August 6, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

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#	Case Name Case Number	Tentative
1.	MacGregor- Name Change 2025-01480873	Before the court is the hearing on the order to show cause as to why the court should not strike its August 21, 2025 order and enter a new order that does not include the language added at section 14. The court is inclined to strike the original order and issue a new one. In response to the order to show cause, the court has received and reviewed petitioner's response to the order to show cause, petitioner's supplemental declaration, petitioner's request for judicial notice, petitioner's declaration in support of the request for judicial notice, proposed NC-130, and proposed NC-330. Nothing the petitioner has presented has convinced the court it is appropriate to issue both an NC-130 and an NC-330 in this case. An NC-330 form without the language that was previously inserted is the appropriate form in this case. The court, however, agrees it is appropriate to enter a new order nunc pro tunc as of the date the original order was entered. Finally, the court agrees the order does not affect petitioner's common law right to change petitioner's name or use an alternative name. The court, however, does not see the need or appropriateness of the attachment petitioner proposes. The NC-330 form already includes both names and the third is just a variation.

		Given the file in this matter is sealed, the court's posted tentative ruling will not go into any further detail as to the basis for the foregoing, but is happy to discuss the matter further petitioner at the hearing.
2.	<i>In RE: Martinez</i> <i>2025-01511372</i>	Before the court is the hearing on the order to show cause as to why the court should not reconsider its February 26, 2026 ruling granting the first amended verified petition for approval for transfer of structured settlement payment rights by and between payee and real party in interest Luis Martinez (Payee) and petitioner CBC Settlement Fundings, LLC (Petitioner). The court set this order to show cause because, in connection with Petitioner submitting a proposed order granting the first amended petition, it came to light that Petitioner served the incorrect annuity owner and incorrect annuity issuer. The court has reviewed the declaration of counsel (ROA 43) Petitioner submitted in response to the order to show cause as well as the notice of hearing. The court continues to have concerns regarding this matter and is inclined to vacate its prior ruling without prejudice to Petitioner filing and serving another amended petition that provides current information and is properly served on all necessary parties. First, since discovering the error, Petitioner represents it has served all documents on the proper annuity owner and issuer—i.e., Pacific Life & Annuity Services, Inc. and Pacific Life & Annuity Company. Petitioner, however, has not served any of the documents on Payee and Payee has not been given notice of today's hearing. Second, although Petitioner represents the proper annuity owner and issuer have no objection, that representation is hearsay. Finally, nearly a year has elapsed since Payee signed the contract, and it is not clear interest rates and the related calculations have not changed during that period due to changes in the market. Similarly, nothing is presented to show Payee's circumstances have not changed. The first amended petition and the court's decision to grant it was based in part on Payee's dire need to bring his rent current. Given several months have elapsed since then, it is not clear the name need and justification exist.
3.	<i>VFS, LLC vs. AM Bakersfield, LLC</i>	Before the court is the order to show cause why an order for sale of dwelling should not issue relating to property located at 3111 Gardenia Lane, Yorba Linda, California 92886 and owned by judgment debtor Arpit Patel (Debtor)

	2025-01487067	and his spouse, Yesha Patel, as husband and wife and joint tenants. The order to show cause was entered on June 4, 2026, based on the application of judgment creditors VFS, LLC and VFSOX, LLC (collectively, Creditors). The court previously found Creditor's application satisfied the statutory requirements, and therefore the court issued the order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770.) In connection with the order to show cause the court must determine whether the dwelling is a homestead entitled to the homestead exemption, the amount of any homestead exemption, the dwelling's fair market value, the existence of any liens senior to Creditor's judgment lien, the amount of any such liens, and whether the sale of the dwelling is likely to produce a bid high enough to satisfy any part of Creditor's judgment. (<i>Meyer v. Sheh</i> (2022) 74 Cal.App.5th 830, 838-839.) There is no statutory requirement the bid be sufficient to cover any costs of the sale. (See <i>In re Hyman</i> (9th Cir. 1992) 967 f.2d 1316, 1321.) Here, Debtor has shown the dwelling is a homestead and he is entitled to the homestead exemption. Debtor also has shown the exemption is in the amount of \$722,150, based on the amount of the exemption at the time Creditor's judgment lien attached. (<i>Berhanu v. Metzger</i> (1992) 12 Cal.App.4th 445.) Creditors do not dispute either Debtor's entitlement to a homestead exemption or its amount. The parties, however, do have disputes as to the amount of the two liens on the dwelling senior to Creditor's judgment lien as well as the fair market value of the dwelling. Creditors submit an independent appraisal report for the dwelling based on comparable sales and property characteristics. The appraisal is dated as of March 23, 2026, and values the dwelling at \$4,275,000. Debtor offers his own opinion the dwelling is worth approximately \$4 million. He offers no basis for that opinion other than the property was listed for sale at \$4.6 million, and the price was then reduced to \$4.3 million, and it still has not sold. A property owner may offer an opinion as to the value of their own property, and then the justification offered for that opinion goes to its weight. (Evid. Code, § 813, subd. (a).) Here, Debtor offers nothing more than his belief and the fact the dwelling has not sold. Creditors offer a professional appraisal based on six separate comparable sales that occurred in 2025. The court finds
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	Creditor's valuation to be more credible, but updated information would be helpful. As to the first lien on the property held by Change Lending, LLC, the parties do not dispute its existence. Rather, their only disagreement is the outstanding balance on the lien. Creditor concedes the balance is \$3,064,745.43, which is the accelerated outstanding balance based on the most recent mortgage statement Debtor provided. Debtor contends the amount is \$3,152,937, but fails to include any credible evidence or explanation for that figure. He states he added the next mortgage payment to the balance reflected in the most recent statement, but that amount is included in the accelerated balance and nonetheless adding the next payment to the amount identified in the statement does not total the amount Debtor argues. The court finds the appropriate amount is \$3,064,745.43. The second lien or deed of trust is held by Jiten Gandhi, as trustee of the Gandhi Family Trust. Such a lien is recorded on the dwelling, but it is unclear how much the outstanding balance is. The recorded deed of trust refers to two promissory notes—one for \$300,000, dated December 28, 2021, and a second one for \$200,000, dated the same date as the second deed of trust (i.e., June 19, 2022). Debtor contends the amount of this deed of trust was originally \$300,000, but he borrowed an additional sum in April 2026 to bring the total principal to \$375,000. He contends the total amount due is currently \$395,000 based on an alleged, handwritten payout demand from Mr. Gandhi. Creditor asserts a number of challenges to this lien and the amount suggested by Debtor. The evidence offered is highly questionable and there are significant admissibility issues. The court lacks sufficient evidence to determine the amount of the lien. The court, however, notes it lacks the authority to evaluate the validity of any recorded lien in connection with these proceedings. Even an apparently fraudulent lien must be provided for in the order of sale if it is superior to the judgment creditor's lien. The creditor's recourse is to file a fraudulent conveyance action for a determination the lien is void. (See <i>Kahn v. Berman</i> (1988) 198 Cal.App.3d 1499, 1509.) Debtor and Mr. Gandhi must present much greater, admissible evidence to establish the amount of the recorded lien. The recorded second deed of trust refers to two separate promissory notes, but neither note is provided. Moreover, no specifics are provided regarding
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		any funds actually received by Debtor under either note, the terms of the note, the amount of interest, the amount of any payments, how the amount allegedly due is calculated, etc. Much more detailed and admissible evidence is necessary. Mr. Gandh must be cautioned if he fails to provide sufficient evidence to support the amount he is allegedly due under the second deed of trust, he may lose some or all the priority to which he may otherwise be entitled. In making an order for sale of a dwelling, the court is required to fix the amount of all senior liens and it cannot do so if the lienholder fails to provide sufficient evidence. The court further notes there is no information about the current amount or status of the real property taxes. The bill attached is for the installments due in November 2025 and February 2026. No information is provided as to whether those were paid or resulted in a lien. Finally, Creditors note a notice of default has been recorded by the senior lienholder to start the foreclosure process because Debtor has missed a number of payments. According to Creditors, the earliest a foreclosure sale could be noticed is 20 days after August 17, 2026. Creditor acknowledges any sale pursuant to this order to show cause should be delayed for approximately 30 days to see what happens with the foreclosure. Based on the foregoing, the court continues the hearing to THURSDAY, SEPTEMBER 17, 2026, AT 2:00 P.M., IN DEPARTMENT C23, to determine the status of the foreclosure, to receive updated information about the fair market value of the property, to receive further evidence regarding the amount of the second deed of trust held by Mr. Gandhi, and to receive information about any real property tax liens on the dwelling. At least 9 court days before the continued hearing date both Creditors and Debtor are ordered to file and serve a declaration(s) updating the court on the status of the foreclosure on the dwelling, providing any further information regarding the dwelling's fair market value, providing admissible evidence about the amount due on the second deed of trust as described above, and notifying the court about the existence and amount of any lien for real property taxes. Counsel for Creditors is ordered to give notice of this ruling.
4.	<i>Michael Basso, Trustee of the Basso Family</i>	Before the court is the continued hearing on the petition to compel arbitration filed by petitioners Michael Basso, Donna Basso, and Joseph Michael Basso, trustees of the Basso Family Trust (collectively, Petitioners) seeking to compel

	<i>Trust vs. Huajin Zhou</i> 2026-01550302	respondent Huajin Zhou (Respondent) to arbitrate Petitioners' claims pursuant to the parties' arbitration agreement. As set forth below, the petition is GRANTED. The court is required to order arbitration if it determines an agreement to arbitrate the controversy exists and a party to the agreement refuses to arbitrate that controversy, unless a valid defense to enforcement exists. (Code Civ. Proc., § 1281.2, subds. (a)-(c).) The moving party bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Here, Petitioners produced evidence Respondent agreed to binding arbitration in the parties' Residential Purchase Agreement and Joint Escrow Instructions (RPA) as to "any dispute or claim in Law or equity arising between them out of this Agreement or any resulting transaction" (Petition, Ex. 1 ¶ 28(A).) This dispute arises out of the RPA. Petitioners demanded arbitration, but Respondent refused. (Verified Petition ¶¶ 7-9.) Since the initial hearing on the petition, Respondent has filed a statement of non-opposition in which he acknowledges the parties' arbitration agreement and agrees the court should enter an order compelling the parties to arbitrate their claims. The court therefore GRANTS the petition and Respondent is hereby ordered to submit to arbitration regarding Petitioners' claims consistent with the parties' arbitration agreement. Given these proceedings were commenced simply as a petition seeking to compel arbitration, the proceedings are now complete given Respondent has been ordered to arbitrate the dispute. A new petition will be required for any future relief, such as a petition to confirm, vacate, or correct any future arbitration award. Petitioners' counsel is ordered to give notice of this ruling
5.	<i>Zollner Electronics, Inc. v. Skybell Technologies, Inc.</i> 2023-01360405	CONTINUED TO OCTOBER 22, 2026, as stated in the August 3, 2026 Minute Order.

6.	Petition of Geringer 2026-01573428	Before the court is the Verified Petition Pursuant to Code of Civil Procedure Section 2035.010 et. seq. filed by petitioner Darin Geringer (Petitioner). As more fully set forth below, the petition is GRANTED. In the petition, Petitioner seeks an order authorizing his medical consultant to conduct an independent physical examination of respondent and potential plaintiff Juan Carlos Amezcua (Respondent) pursuant to a demand a physical examination under Code of Civil Procedure §2033.210 et seq. Code of Civil Procedure second 2035.010 states, "One who expects to be a party . . . may obtain discovery . . . for the purpose of preserving evidence for use in the event an action is subsequently filed." Section 2035.020 states, "The methods available for discovery conducted for the purposes set forth in Section 2035.010 are all of the following: . . . (c) Physical and mental examinations." Section 2035.030 sets forth the procedural requirements as well as the requirements for the verified petition. The court finds Petitioner has complied with Section 2025.030. The court also finds the petition and notice of petition have been properly served as required by Section 2035.040. The court has reviewed the verified petition, the notice of verified petition, and the declaration of Michael Lowell. The court finds the requested discovery may prevent a failure of justice. (Code Civ. Proc., § 2035.050) Although Respondent opposed an ex parte application for a temporary restraining order to prevent him from having back surgery before this petition could be heard, Respondent has not filed any opposition to this petition. In opposing the ex parte, Respondent argued physical examinations such as the one sought by Petitioner may only be obtained after a lawsuit is filed. Respondent is mistaken. As stated above, Section 2035.020 expressly authorizes a physical or mental examination pursuant to the prelawsuit procedures established by Section 2035.010 et seq. Based on the foregoing, the motion is GRANTED. Respondent and potential plaintiff Juan Carlos Amezcua is hereby ORDERED to submit to a physical examination by Petitioner's medical consultant pursuant to a notice served in compliance with Code of Civil Procedure §2032.010, et. seq. Petitioner is ordered to give notice.
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7.	<i>Interinsurance Exchange Of the Automobile Club vs. Tyler</i> 2026-01565527	Before the court is a motion by petitioner Interinsurance Exchange of the Automobile Club (Petitioner) to compel responses to form interrogatories, set one, from respondent Patricia Tyler (Respondent). For the reasons set forth below, the motion is DENIED. This motion is brought as a motion to compel initial responses to form interrogatories pursuant to Code of Civil Procedure section 2030.290; not a motion to compel further responses pursuant to Code of Civil Procedure section 2030.300. Petitioner contends it propounded written discovery, including form interrogatories, on Respondent on November 6, 2025. Petitioner granted multiple extensions to respond, with the final extension until March 31, 2026. Petitioner contends Respondent served unverified responses consisting solely of objections and no substantive information. (Nomani Decl., ¶ 8 and Ex. G.) Petitioner asserts it sent a meet and confer letter to Respondent's counsel regarding the deficient responses and "despite acknowledgment and opportunities to cure, [Respondent] once again served unverified responses on May 26, 2026." (Nomani Decl., ¶ 10.) Although the declaration of Petitioner's counsel states the May 26, 2026 responses are attached to the motion as Exhibit K, there is no Exhibit K attached. Petitioner makes no argument any particular response is deficient. Petitioner also references Respondent's "failure to provide any substantive responses." (Nomani Decl., ¶ 11.) It thus appears Respondent twice served unverified objection-only responses. It also appears from Petitioner's declaration and the attached correspondence that the responses were timely based on the multiple extensions granted by Petitioner. Therefore, no verifications were needed and no objections were waived. (See <i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 135 [response that contains nothing but objections need not be verified under oath]; see also, <i>Food 4 Less Supermarkets, Inc. v. Sup.Ct. (Fletcher)</i> (1995) 40 Cal.App.4th 651, 657-658.) Although case law also holds unverified responses are the equivalent of no response at all, the rule does not apply when the responses served are nothing but objections because objections need not be verified. To the extent Petitioner contends the objections lack merit and verified substantive responses should be provided, Petitioner should have filed a motion to compel further responses with the required separate statement so the court could evaluate the objections. As no motion to
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		compel further responses and no separate statement was filed, the court is unable to evaluate the objections. The motion pursuant to Code of Civil Procedure section 2030.290 therefore is DENIED. Counsel for Petitioner is ordered to give notice.
8.	<i>In Re:</i> <i>Intelifund, LLC</i> <i>2026-01572926</i>	Before the court is a petition by petitioner Intelifund, LLC (Petitioner) in which it seeks an order approving the transfer of structured settlement payment rights by and between payee and real party in interest Marquez Balingit (Payee) and Petitioner pursuant to California Insurance Code section 10134 et seq. For the reasons set forth herein, the petition is DENIED WITHOUT PREJUDICE. Petitioner seeks approval of an agreement for Payee to transfer his right to receive a single lump sum payment of \$140,000 on April 30, 2028, in exchange for a current lump sum payment of \$100,374.22. The payment right Payee agrees to transfer has a discounted present value of \$126,710.76. Accordingly, Payee would receive 79.21 percent of the discounted present value and the transaction would have an equivalent interest rate of 18.11 percent. Unfortunately, there are a number of deficiencies with the current petition that require it to be denied without prejudice to a new petition. There is no annuity contract, qualified assignment and release, or settlement agreement attached to the petition. Insurance Code section 10139.5(f)(1)(E)-(G) require these documents to be attached to the petition. Section 10139.5(f)(1)(H) provides an exception as follows: "If a copy of a document described in subparagraph (E), (F), or (G) is unavailable or cannot be located, then the transferee is not required to attach a copy of that document to the petition or notice of the proposed transfer if the transferee satisfies the court that reasonable efforts to locate and secure a copy of the document have been made, including making inquiry with the payee. If the documents are available, but contain a confidentiality or non-disclosure provision, then the transferee shall summarize in the petition the payments due and owing to the payee, and, if requested by the court, shall provide copies of the documents to the court at a scheduled hearing." Here, the documents are not provided and a sufficient showing to justify that failure is not provided either. Further, although Petitioner states "A copy of the annuity contract, qualified assignment and release, and settlement agreement is attached to this Petition as Exhibit 7" (Petition

		at 6:3-4), the document attached as Exhibit 7 is a copy of an Order Approving Compromise of Minor's Claim filed in the underlying action on April 10, 2001. That order further undermines the petition because it contradicts the other representations about the underlying settlement and describes a different transaction than what Petitioner and Payee represent. For example, the petition states a single lump sum of \$140,000 is being transferred but the order states there was to be a single lump sum payment of \$100,000 to be made to Payee when he turned 25. Not only are the amounts inconsistent, but Payee also states he is currently 28 and therefore the payment described in the order already should have been made. In addition, Payee states the transaction is "in the best interests of my family." (Payee Decl. ¶6.) At Exhibit 5, however, he states he has no dependents. It is therefore not clear what "family" he is referring. Moreover, Payee states the purpose for the transfer is to "purchase a car, cover housing expenses and other living general expenses." But there is no information provided as to Payee's current living expenses, contributions from his "family" or why his \$3,800/month income is insufficient. More information is required about Payee's financial circumstances. The court further notes it cannot find the verified statement from Petitioner stating that all the conditions set forth in Sections 10136, 10137, and 10138 have been met. Such a statement is customarily attached to petitions such as this pursuant to Insurance Code section 10139. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice.
9.	<i>In Re: 4968 Avila Way, Buena Park, CA 90621</i> <i>2025-01489807</i>	Before the court is continued hearing on the motion of claim for disbursement of surplus funds by claimant Nina Ilkhanoff (Claimant). As more fully set forth below, the motion is GRANTED. On June 11, 2025, petitioner Quality Loan Service Corp. (Petitioner) filed a petition and declaration regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale held on January 6, 2025, regarding real property located at 4968 Avila Way, Buena Park, California 92601 (Property). The Property had sold for \$569,100, and after paying the amounts set forth in Section 16 of the petition, a surplus balance of \$27,144 remained.

		On September 25, 2025, the court granted Petitioner's request to deposit the surplus funds with the court for the court to adjudicate the owner of those funds. (ROA 16.) Petitioner subsequently deposited the \$27,144 in surplus funds and was discharged from responsibility for distribution of the surplus funds. (ROA 21, 27.) No claim to the surplus funds, however, was asserted prior to or at the hearing on unresolved claims held on December 11, 2025, and the funds continue to remain on deposit with the court. (ROA 32.) Claimant filed the motion on March 16, 2026, and the court conducted the initial hearing on this motion on May 28, 2026. At that time, the court continued the hearing to today's date based on defects in the proof of service attached to the motion and the evidentiary showing in support of the motion as more fully described in the court's May 28, 2026 Minute Order. Following that hearing, Claimant, through her daughter and power of attorney, submitted a request for judicial notice, a new declaration, and proofs of service showing service of these papers and notice of this hearing on all potential claimants identified in Petitioner's petition. Through her supplemental filings, Claimant has shown she was the record owner of the property immediately prior to the trustee's sale. No other lienholder or claimant has come forward to state in other claim to the surplus funds. Claimant therefore has established she is entitled to the entirety of the surplus funds on deposit with the court. Based on the foregoing, Claimant's motion and claim are GRANTED. Claimant's request for judicial notice also is GRANTED. The clerk of the court is directed to release the deposited funds to claimant consistent with the written order to be signed by the court. Claimant is ordered to submit a proposed order granting her claim. The order must identify the specific amount to be paid, to whom the check is to be made payment, and the address to which the check should be sent. The current proposed order is not sufficient. Claimant's counsel is ordered to give notice of this ruling.
10.	<i>Mary E. Schuchart, Trustee of The Schuchart Family Revocable</i>	Transferred to Department C66 to be heard in an unlawful detainer courtroom on August 12, 2026, as stated in the court's August 3, 2026 Minute Order.

	<i>Trust vs. JMI Trading Inc.</i> 2026-01570438	
11.	<i>Signature Collection Properties, LLC vs. Academy West Investments, LLC</i> 2021-01206266	OFF CALENDAR based on notice of withdrawal of motion filed on July 27, 2026.
12.	<i>Ford Motor Credit Company, LLC vs. Manukyan</i> 2011-00457348	Before the court is the motion to vacate the judgment defendant Larisa Manukyan (Defendant) filed on June 4, 2026. Pursuant to Code of Civil Procedure section 683.170, Defendant seeks to vacate the renewed judgment entered on April 1, 2021, which renewed the default judgment entered against Defendant and in favor of plaintiff Ford Motor Credit Company, LLC (Plaintiff) on June 23, 2011. As more fully set forth below, the motion is DENIED. First, the motion is untimely. On this motion, Defendant bears the burden to prove by a preponderance of the evidence that she is entitled to vacate the renewal of judgment under Code of Civil Procedure section 683.170. (<i>American Contractors Indemnity Co. v. Hernandez</i> (2022) 73 Cal.App.5th 845, 848.) Based on the evidence presented, Defendant has not met that burden. Defendant asserts she never received the notice of renewal Plaintiff filed on April 8, 2021, and claims to have served on Defendant on April 14, 2021. (ROA 36, Manukyan Decl., ¶ 13.) On April 6, 2026, Plaintiff filed a proof of service showing it mailed the application for and now of renewal of judgment to Defendant at an address on Cypress Street in Glendale, California on April 14, 2021. On or about April 6, 2026, Plaintiff also filed in the Los Angeles Superior Court action a declaration by the person who mailed the notice of renewal to Defendant confirm that mailing. (ROA 34, Ex. F; ROA 40.) Defendant does not dispute the Cypress Street address to which the notice of renewal was sent is her address and has been since December 2016 as she confirmed in the identify theft affidavit she presented to the Glendale Police Department and attached to her opposition. Instead, Defendant simply offers her own declaration denying receipt of the notice of and application for renewal of judgment. As stated, Plaintiff has offered a proof of service

		and an additional declaration by the person who served the notice confirming the service. Accordingly, there is a factual dispute as to whether the notice of renewal was sent and received in April 2021. The court, however, finds Defendant and her explanations and claims to be lacking in credibility because, inter alia, her statements are inconsistent and conclusory, she offers little to no evidence to corroborate her claims and denials, and some of assertions simply do not add up or make sense. For example, she asserts the address where substitute service of the complaint in this action was effectuated on her back in April 2011 was not her address, and she does not know the person with whom the summons and complaint were left to effectuate that service. The proof of service (ROA 6) identifies that person as "Spartik Akopyan," a co-occupant. Plaintiff, however, has presented evidence to show, and Defendant has confirmed in discovery responses in another case, that "Spartak Hakobyan" is her son. (ROA 46, ¶ 14; ¶27, Exh. 24, interrogatory no. 20.) On reply, she has not attempted to dispute the person who was sub-served on her behalf was in fact her son, she has not indicated she inquired of him about the service, and she has not presented any declaration from him relating to or otherwise disputing the service. Defendant also has failed to state where she actually lived in 2011 if not at the service address, and she has failed to address her apparent connection to the address where her son was sub-served on her behalf. Defendant also asserts she first learned of the judgment at issue in November 2023. But Plaintiff has presented evidence to showing this is not true. (ROA 46, ¶¶ 14-17.) Specifically, Plaintiff's counsel presented evidence it received a three-way call from Defendant on September 25, 2023, authorizing counsel to speak with her son (Spartak Hakobyan) and Don Peteete about the judgment and counsel thereafter had many conversations with Mr. Poteete during September and October 2023—i.e., before Defendant allegedly learned of the judgment. Defendant presents no evidence with the reply to rebut this evidence. There are other inconsistencies in Defendant's assertions and matters that simply do not add up for her version of events. For example, in the identity theft affidavit she submitted to the Glendale Police Department, Defendant states she has lived at the Cypress Street address since December 2016, but then on the same page she states she
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		lived at the same address at the time of the fraud. The allegedly fraudulent contract underlying Plaintiff claim was entered into in December 2007 and the default Judgment was entered against Defendant in June 2011. Accordingly, if Defendant has only lived at the Cypress Street address since December 2016, she could not possibly live there at the time of the fraud. Based upon the totality of the circumstances and evidence, including but not limited to the foregoing, the court does not find Defendant's assertion she did not receive the application for and notice of renewal of the judgment in April 2011. Any motion to vacate a renewed judgment under section 683.170 must be brought within 60 days of the defendant/judgment debtor being served with notice of the renewal. (Code Civ. Proc., § 683.170, subd. (b).) Defendant did not serve this motion until more than five years after she was served with notice of the renewal. Defendant also argues, even if she was served in April 2021 with notice of the renewal, this motion is still timely as the corresponding proof of service was not filed until April 2026. She asserts, under Code of Civil Procedure sections 683.160(a) and 683.170(b), the filing of that proof of service is an essential step to trigger the 60-day motion deadline. Defendant is mistaken. Code of Civil Procedure section 683.160, subdivision (a), requires the notice of renewal to be on a Judicial Council form and notify the judgment debtor they have 60 days to challenge the renewal. That shows the 60 days runs from service of the notice, not the filing of the proof of service. The statutes do not set a deadline for filing the proof of service or otherwise indicate the renewal is invalid without a proof of service. Rather, the statutes simply provide no writ of execution may be issued or enforcement proceedings commenced until proof of service is filed. (Code Civ. Proc., § 683.160, subd. (b).) This conclusion is confirmed by the caselaw: "[T]here is no statutory requirement that the notice of renewal be served on the judgment debtor in order for the renewal to be effective. (See § 683.160.) 'Service on the judgment debtor is not necessary to renew the judgment. However, no writ of execution can issue on the renewed judgment until proof of service of the Notice has been filed with the court clerk. Nor, pending filing of proof of service, may the judgment creditor commence any other enforcement proceeding (e.g., examination of judgment debtor), unless it would have been available under the nonrenewed original
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		judgment. [CCP § 683.160(b)].’ (Ahart, Cal. Practice Guide: Enforcing Judgments and Debts, supra, ¶ 6:78, pp. 6A–41 to 6A–42.) <u>Thus, there is no specified time period within which the renewal of judgment must be served on the judgment debtor. The statute instead provides that the judgment creditor may not initiate any enforcement proceedings unless and until the judgment debtor has been served with the notice of renewal.” (Goldman v. Simpson (2008) 160 Cal.App.4th 255, 262, fn. 4 (underlining added).)</u> Accordingly, the court finds Defendant’s motion is untimely. Moreover, even if the court could properly and were to construe the motion as one attacking the underlying judgment as void for lack of proper service, the court would deny the motion because, as explained above, the court finds Defendant’s claims she was not served with the summon and complaint or the notice of renewal lacking in credibility. Based on the foregoing, the motion is DENIED. Defendant’s Request for Judicial Notice (ROA 34) is GRANTED under Evidence Code section 452(d) as to the existence of the records, but not as to the truth of any disputed facts asserted therein. (<i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) Plaintiff is to give notice of this ruling.
13.	Seton Hall University vs. Spitz 2026-01555640	Before the court is the special motion to strike pursuant to Code of Civil Procedure section 425.16 filed by respondent Eric Spitz (Respondent) directed to the petition to enforce deposition subpoena filed by petitioner Seton Hall University (Petitioner). For the reasons set forth below, the motion is DENIED. Initially, the court notes Respondent’s opening brief is 20 pages and thus exceeds the 15-page limit set by California Rules of Court, rule 3.1113, subdivision (d). Respondent’s ex parte application to file an overlength memorandum was denied based on Respondent’s failure to follow proper procedures for making such request and his failure to make an adequate showing justifying such relief. (ROA 78.) Based on the foregoing, the court exercises its discretion and declines to consider the last five pages of Respondent’s opening brief. (See Cal. Rules of Court, rules 3.1113(g), 3.1300(d).) Given the court’s conclusion below that Respondent failed to establish section 425.16 applies,

		considering these additional five pages would not change the outcome of this motion. The court also notes the motion appears to be moot because the court already ruled on and granted Petitioner’s petition to enforce deposition subpoena on May 28, 2026, prior to Respondent properly and timely filing this special motion to strike. (See ROA 67.) Although Respondent attempted to file the special motion to strike at 10:39 p.m. on May 26, 2026, prior to the May 28th hearing, the filing was rejected because Respondent failed to comply with the applicable filing requirements. Specifically, Respondent failed to reserve a hearing date for the motion. (See Notice of Rejection at ROA 64.) Respondent then belatedly resubmitted the motion to strike on May 29, 2026 (see ROA 72), which is after the court already had issued its ruling granting the petition. Respondent contends the motion was timely filed under California Rules of Court, rule 2.259(c), and the filing date actually is May 26, 2026. (Spitz Decl., ¶ 16.) Rule 2.259(c) states, “If a technical problem with a court’s electronic filing system prevents the court from accepting an electronic filing on a particular court day, and the electronic filer demonstrates that he or she attempted to electronically file the document on that day, the court must deem the document as filed on that day.” Respondent’s filing was not rejected due to a technical problem with the court’s electronic filing system. As mentioned, the motion was rejected because Respondent failed to reserve a hearing date for the motion. Rule 2.259(c) thus is inapplicable. The court also notes Respondent failed to appear at the May 28, 2026 hearing on the petition. (See ROA 67.) As the record demonstrates, Respondent phoned the courtroom moments before the scheduled hearing time to inform the court his counsel was unable to attend the hearing. As more fully explained on the record, no explanation was provided, no specific relief was requested, and no opposition to the petition was filed. The court therefore proceeded with the hearing. The court further notes Respondent filed a motion to quash the deposition subpoena which includes an alternative request to vacate or modify the court’s order granting the petition. (See ROA 150.) That motion, however, is not set to be heard until September 3, 2026. Respondent failed to show how the court can properly entertain this motion and strike the petition under the anti-
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		SLAPP statute when the court already has issued an order granting the petition and when no request to set aside that order has yet been heard. The court also notes the motion was filed outside the mandatory 60-day period established by Code of Civil Procedure section 425.16, subdivision (f) (i.e., motion must be filed within 60 days after service of document motion challenges). Respondent was personally served on March 27, 2026, and therefore this motion had to be filed by May 26, 2026. As noted above, although Respondent attempted to file the motion at 10:39 p.m., on May 26th it was rejected because he failed to reserve a hearing date. As such, the court finds the motion was not timely filed and Respondent did not obtain leave of court to file the motion outside the 60-day period. Regardless of any of the foregoing procedural issues and on the merits of the motion, the court finds Respondent has failed to establish the anti-SLAPP statute applies to the instant proceeding. In the moving papers, Respondent cited "<i>ContentGuard Holdings, Inc. v. Amazon.com, Inc.</i> (2017) 11 Cal.App.5th 906" for the proposition a petition to enforce a discovery subpoena is a "cause of action" within the meaning of section 425.16. That case, however, does not exist and appears to potentially be an AI hallucination. Petitioner called this to Respondent's attention a few days before the opposition was due. In response, Respondent filed a notice of errata withdrawing this case citation and explaining counsel researched the case and agrees it does not exist. The court appreciates Respondent's counsel withdrawing the citation, but counsel's responsibility is to confirm the accuracy of the case citations and representation made to the court before the document is filed with the court. No to do so only after the opponent calls it to counsel's attention. The court will not issue an OSC re sanctions at this time, but counsel is reminded and admonished that they are responsible for the accuracy of all representations they make to the court, and such accuracy must be confirmed prior to documents being submitted to the court. Respondent also relies on <i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 393-96, and <i>Rusheen v. Cohen</i> (2006) 37 Cal.4th 1048, 1056. <i>Rusheen</i> did not involve discovery proceedings or discovery enforcement, and it dealt with a traditional cause of action for abuse of process. <i>Rusheen</i> is inapposite. <i>Baral</i> discussed the scope of the term "cause of action" in section 425.16 but did not address whether section 425.16 applies to a petition to enforce a discovery
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	subpoena. In addition, <i>Thomas v. Quintero</i> (2005) 126 Cal.App.4th 635, cited by Respondent in the reply, involved a petition seeking injunctive relief under the civil harassment statute, and is thus not analogous to the instant matter. Interestingly, although <i>Thomas</i> held section 425.16 applied to a petition for a civil harassment restraining order, it held section 425.16 did not apply to an application for a temporary restraining order under the civil harassment statute because such an application does not qualify as a cause of action or claim. (126 Cal.App.4th at p. 652.) Petitioner cites the controlling authorities that are much more on point. Specifically, the court finds <i>Tendler v. www.jewishsurvivors.blogspot.com</i> (2008) 164 Cal.App.4th 802, to be much more analogous to the instant proceeding. In <i>Tendler</i>, the court held a request for discovery subpoenas in a California court in aid of an out-of-state case was not subject to a motion to strike as a SLAPP because “a request for a subpoena, unlike a complaint, cross-complaint, or petition, does not contain any ‘cause of action’” and the request for a subpoena “merely seeks to compel the disclosure of information potentially relevant to a ‘cause of action.’” (<i>Id.</i> at p. 808; see also <i>In re Marriage of Benner</i> (2019) 36 Cal.App.5th 177, 190 (<i>Benner</i>) [“The California Supreme Court has also made it clear that, in order to prevail on a special motion to strike, the defendant must demonstrate that the “‘plaintiff claims to have been injured’” by the defendant’s conduct that is protected by the statute. (Citations omitted) . . . [A] special motion to strike (§ 425.16, subd. (b)(1)) may not be brought to attack pleadings that do not contain a cause of action.”].) Here, although the challenged proceeding is a petition to enforce a subpoena that already has been issued by the California court, the court finds the foregoing authorities to apply and control here. Indeed, much like in <i>Tendler</i>, the Petitioner’s petition merely seeks to compel the disclosure of information potentially relevant to a cause of action – i.e., to the causes of action asserted in the New Jersey case. Yes, this case involves the enforcement of the subpoena rather than its issuance, but the court does not find that distinction controlling. Petitioner’s petition does not contain any “cause of action” alleging an injury to Petitioner as a result of conduct by Respondent, nor does it contain allegations of protected activity that are asserted as “grounds for relief” against Respondent. Respondent cites no authority for his argument Petitioner’s request for monetary sanctions under
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		Code of Civil Procedure sections 2025.480(j) and 1987.2(a) for failure to comply with the subpoena, constitutes a "claim for relief" within the meaning of the anti-SLAPP statute. In <i>Benner</i>, the petitioner sought to add the party bringing the motion to strike to a martial dissolution procedure so the court could order that party to return all fees he was paid as a court appointed expert in the case. Despite the moving party being joined so the court could order the party to repay the fees he received, the Benner court still found section 425.16 did not apply. The same analysis applies here regarding the sanctions request. (<i>Benner, supra</i>, 36 Cal.App.5th at pp. 181-182, 193-196.) Moreover, the sanction request arises out of Respondent's complete refusal to comply with the subpoena, not any alleged underlying protected activity. Respondent has failed to show section 425.16 applies to the instant proceeding. Based on the foregoing, the motion is DENIED. Petitioner's "Objection and Motion to Strike" Respondent's new evidence and argument submitted on July 21, 2026 (ROA 180), is OVERRULED and DENIED. It appears Petitioner was able to fully respond to the new evidence and argument as Petitioner referenced the supplemental filings several times in its opposition. The parties' requests for judicial notice of the petition and supporting declaration filed in this action are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The court declines to rule on the parties' evidentiary objections as the cited evidence and objections are not material to the disposition of the motion. Counsel for Petitioner is ordered to give notice of this ruling.
14.	<i>People of the State of California vs. Benji</i> 2025-01482836	Before the court is the motion of plaintiffs People of the State of California ex rel. Farmers Insurance Exchange, Mid-Century Insurance Company, and Truck Insurance Exchange (collectively, Plaintiffs) to deem this case complex and transfer the matter to a judge assigned to the court's complex panel.

		The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a “‘complex case’ is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel.” Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include “whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision.” The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage claims arising out of any of the claims listed in (c)(1) through (c)(6).” “With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously
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	declared to be a complex case is not a complex case.” (Cal. Rules Ct., rule 3.403.) Here, none of the parties contend this case falls into any of the categories deemed as provisionally complex, and therefore this motion turns on whether the parties are able to make a sufficient showing regarding the factors identified in rule 3.400(b) to warrant designating this case as complex. The fact the parties may agree or stipulate a case is complex does not make it so. Much like on a motion to seal documents, the court must act as a gatekeeper and determine whether the relevant factors have been adequately shown. The parties’ agreement on those factors is not sufficient. The parties appear to agree the case is complex in their view, but have disagreements as to whether this case is related to similar cases pending in Los Angeles and whether this case should be coordinated with the cases pending in Los Angeles. The parties suggest many of the factors identified in rule 3.400(b) are present in this case, but present no evidence to support their existence and largely superficial or conclusory analysis in an effort to establish them. For example, the parties contend this case is likely to involve numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve. The court ordered this case unsealed and Plaintiffs to serve defendants Jaklin Benji, Mathew Rashidi, Mike Rashidi, Precise Global Imaging, Inc., and Precise MRI Corporation (collectively, Defendants) one year ago, on August 11, 2025. In that time, not one motion has been heard. A demurrer was filed and then mooted by an amended complaint. A second demurrer was filed, and then the parties stipulated to put the hearing on that demurrer off until the end of October. The parties have not shown that pending demurrer presents a host of novel, time consuming motions. Similarly, the parties have not identified any other of the alleged numerous pretrial motions that will be necessary. The parties also assert the case will involve the management of a large number of witnesses or a substantial amount of documentary evidence. The parties assert this case involves 2,465 claims at 76 different locations which will give rise to the need to depose 100-150 witnesses. Although this may give rise to a large volume of documents and witnesses, that alone does not designate this case as complex. Moreover, there is no explanation
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		what will be needed to try this case. For example, is it the same issue over and over again on each insurance claim that can be streamlined or does every claim present a distinct issue? The parties have not shown this case involves management of a large number of separately represented parties. There are essentially three plaintiffs represented by a single law firm. Similarly, there are five defendants all represented by the same law firm. This factor would appear not to be present. The fourth factors—i.e., coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court—is one on which the parties differ. Defendants have filed multiple notices of related cases claiming this case is related to the case pending in Los Angeles, but the Los Angeles Superior Court, as the one with the lower case number, is the one to make the related case determination (or whether to reach out and discuss issues) and that court has declined to deem the cases related. Moreover, Defendants insist this case will be coordinated with the Los Angeles case, but Defendants have failed to show any steps have been taken to make that occur in the one year that has elapsed since this case was unsealed. Finally, as to whether substantial postjudgment judicial supervision will be necessary, the parties again have made no specific showing. Counsel should appear at the hearing to provide any update regarding the status of the Los Angeles case, and much more specific information relating to the necessary factors for this case to be deemed complex.
15.	<i>Interinsurance Exchange of the Automobile Club vs. Smith</i> <i>2026-01556853</i>	Before the court is the motion filed on June 8, 2026 (and re-filed on June 16, 2026), by petitioner Interinsurance Exchange of The Automobile Club (Petitioner) to “Obtain Cellular Phone Records From Verizon Or Alternatively, To Enforce Deposition Subpoena.” As more fully set forth below, the motion is GRANTED. The Motion seeks an order compelling Verizon to release specific cell phone records to Petitioner for the cell phone of Respondent Charles Smith (Smith) pursuant to subpoena and a signed release of records. The motion appears to have been timely filed and duly served. Neither Smith nor Verizon has filed an opposition to the motion. In addition, Petitioner represents the subscriber for the cell phone number at issue is Felicia Burns, and

		Ms. Burns provided an express release for the records at issue as reflected in Exhibit B. Under the stated circumstances, the motion is GRANTED as to the request to require Verizon to comply with the subpoena at issue. Verizon is to be served with notice of this ruling, and it shall have 20 days thereafter to comply. Counsel for Petitioner is to give notice of this ruling.
16.	<i>In the Matter of the Assumption of Law Practice of Carlos F. Negrete</i> 2016-00836353	Before the court is the continued hearing on the motion by petitioner State Bar of California to terminate its assumption of jurisdiction over the law practice of Carlos F. Negrete. Prior to the last hearing, the court posted its tentative ruling regarding its inclination to grant the motion, but continued the hearing to today's date and ordered a designated decisionmaker to appear to discuss this motion and compliance with the court's order authorizing the assumption of Mr. Negrete's law practice. In addition to the motions identified in the court's prior order, the court also would like all attorneys appearing at the hearing to review the minute orders of November 7, 2024, December 5, 2024, August 14, 2025, October 16, 2025, and June 4, 2026, in which the court express the concerns it would like to discuss at this hearing.
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